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**IN THE FOURTH JUDICIAL DISTRICT COURT OF
UTAH COUNTY, STATE OF UTAH**

JANENE THORPE, Plaintiff, vs. EDWARD MAURICE SANCHES AND MARIA SANCHES, Defendants.	COMPLAINT (Jury Requested) <i>Case No.:</i> <i>Judge:</i>
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COMES NOW Janene Thorpe, hereinafter “Mrs. Thorpe”, by and through her counsel of record Liisa A. Hancock of the law firm Jeffs & Jeffs, P.C. and for cause of action against Defendants alleges and avers as follows:

PARTIES, JURISDICTION AND VENUE

1. Janene Thorpe (“Mrs. Thorpe”) is an individual residing in Utah County, Utah at 9267 N. Canyon Heights Drive, Cedar Hills, Utah.
2. Edward and Maria Sanches (“Sanches”) are residents of Utah County, Utah living at 9254 N. Emerald Lake Cove, Cedar Hills, Utah.

3. This Court has jurisdiction over this matter pursuant to UTAH CODE ANN. § 78A-5-102(2).
4. Venue is proper in this Court pursuant to UTAH CODE ANN. § 78B-3-301(1).

STATEMENT OF FACTS

5. Mrs. Thorpe and the Sanches are neighbors with a shared backyard property line.
6. A fence exists between the two properties.
7. Mrs. Thorpe and her family moved into their home behind the Sanches in November of 2016.
8. The Sanches, who have lived in the area since 2001, were the owners of a white dog.
9. The Sanches regularly allowed their dog to roam freely off of their property without accompaniment or restriction by the Sanches.
10. The dog roamed into Mrs. Thorpe's front and back yards and garage multiple times within the time Mrs. Thorpe has lived next to the Defendants.
11. The dog used Mrs. Thorpe's yard as a bathroom.
12. Despite Mrs. Thorpe's, her family members, and other neighbors' requests that the Sanches keep the dog restrained and not allow it to wander the neighborhood freely, the dog continued to come onto Mrs. Thorpe's property.
13. On approximately February 23rd, 2019, the Thorpes had to call the police because the dog was behaving aggressively in their yard. The police informed the Thorpes that they would notify the Sanches to keep the dog on their property and restrained.
14. A few days later on February 26th, 2019, the Sanches' dog came onto Mrs. Thorpe's

property.

15. The Sanches were nowhere to be seen when the dog came into Mrs. Thorpe's property.

16. The dog was not under any form of restraint or control of any person when it came into Mrs. Thorpe's property.

17. The dog ran up to Mrs. Thorpe.

18. The dog bit and attacked Mrs. Thorpe as she was trying to shoo the dog away from her, causing her to fall to the ground.

19. The bite caused injuries to Mrs. Thorpe's wrist, hands, and arms, including long term injuries to her wrist as a result of the dog's teeth piercing her skin.

20. The bite required Mrs. Thorpe to go to the emergency room more than once to be treated.

21. Mrs. Thorpe continued to see the doctor for her injuries from the bite and ultimately had to get surgery on her wrist.

22. Mrs. Thorpe incurred medical costs as a result of the dog bite.

23. The Sanches have made no efforts to take responsibility for their dog.

24. The dog has continued to come onto Mrs. Thorpe's property unchecked.

25. Mrs. Thorpe is afraid every time she sees the dog that it is going to come and attack and bite her again, causing her emotional distress.

FIRST CAUSE OF ACTION
(U.C.A. §18-1-1, *et. seq.*—Strict Liability)

26. Plaintiff incorporates and realleges all prior paragraphs of the Complaint.

27. The Defendants are the owner of a white dog.

28. The Defendants' dog bit and attacked Mrs. Thorpe on Mrs. Thorpe's property.

29. The Defendants' dog's actions caused injury to Mrs. Thorpe's wrist, hands, and arms.
30. Mrs. Thorpe is entitled to a judgment against Defendants for strict liability of their dog's actions.
31. As a proximate result of Defendants' dog's actions Mrs. Thorpe was required to and did employ physicians and surgeons to examine, treat, and care for her injuries and incurred additional medical expenses for hospital bills and other incidental medical expenses in an approximate amount of \$18,793.00 to date.
32. As a proximate result of Sanches' dog's actions, Mrs. Thorpe became emotionally distressed and was required to and did employ therapists to work with her through the distress caused to her as a result of being attacked and bitten by the dog.
33. Mrs. Thorpe remains extremely fearful of dogs running at large to an extent that she was not prior to the dog bite.
34. Mrs. Thorpe has suffered significant pain and suffering as a result of the dog's bite and attack on her.
35. As a result of Sanches' dog's actions, Mrs. Thorpe has been damaged and is entitled to compensatory and general damages not limited to medical compensation, pain and suffering, future medical expenses, mental anguish as well as punitive damages as against the Defendants in an amount to be determined at trial, but not less than \$80,000.

**SECOND CAUSE OF ACTION
(Negligence)**

36. Plaintiff incorporates and realleges all prior paragraphs of the Complaint.
37. The Sanches had a duty to ensure that their dog was restrained and kept to its yard, such

that people, including the Plaintiff were protected and safeguarded from attacks by their dog.

38. The Sanches under Cedar Hills code had a further duty to prevent their animal from becoming an animal at large and restrained by a leash/lead or confined within a vehicle or within real property limits of the Sanches. *See Cedar Hills, UT Code 5-1A-1, et. seq.*
39. The Sanches had owned their dog for several years and were fully aware of its roaming and its vicious attacks.
40. The Sanches had been warned multiple times by the Plaintiff as well as multiple neighbors of the dog, of its nature, and requested that it be restrained and not allowed to roam freely and not be allowed to bite or attack people in the neighborhood.
41. The Sanches had been requested multiple times by the Plaintiff and her family to not allow the dog to come onto their property.
42. The Sanches breached their duty to Plaintiff by allowing the dog to roam free and by failing to place the dog on a leash or chain, or keep the dog within their yard, and to prevent the dog from coming on to the Plaintiff's property.
43. As a proximate result of the dog's bites and attack on Plaintiff, Plaintiff suffered severe injuries, pain and suffering in the total sum of at least \$80,000.
44. As a proximate result of the dog's aggression, Plaintiff incurred medical expenses in a sum in excess of \$18,793.00.

THIRD CAUSE OF ACTION
(U.C.A. §78B-8-201, et. seq.—Punitive Damages)

45. Plaintiff incorporates and realleges all prior paragraphs of the Complaint.

46. The Sanches had knowledge that their dog regularly came onto Mrs. Thorpe's property, defecated on their property, and scared especially Mrs. Thorpe by its aggressive actions toward Mrs. Thorpe and her family when on their property.
47. Upon information and belief, the Sanches were warned by the police to not let their dog run loose.
48. The Sanches dog was aggressive and vicious when at large.
49. The Sanches knowingly and willfully allowed their dog to go onto Mrs. Thorpe's property despite receiving multiple requests to not allow the dog onto their property or to be allowed to roam free in the neighborhood.
50. The Sanches acted with a knowing and reckless indifference toward Mrs. Thorpe and Mrs. Thorpe's property in allowing the dog to come onto the Thorpe property unrestrained and unsupervised.
51. As a result of the Sanches knowing and willful actions, Mrs. Thorpe was injured by the Sanches' dog.
52. Mrs. Thorpe is entitled to a judgment of punitive damages as well as attorney fees.

JURY DEMAND

53. Plaintiff hereby demands a jury trial of all issues in this case.

PRAYER

WHEREFORE, Plaintiff prays judgment against the Defendants as follows:

1. First Cause of Action:
 - a. For judgment in the amount of medical fees incurred by the Plaintiff.

- b. For judgment in the amount of at least \$80,000 for Plaintiff's general damages, including but not limited to pain and suffering and emotional distress.
- 2. Second Cause of Action
 - a. For judgment in the amount of medical fees incurred by the Plaintiff.
 - b. For judgment in the amount of at least \$80,000 for Plaintiff's general damages, including but not limited to pain and suffering and emotional distress.
- 3. Third Cause of Action:
 - a. For judgment that the Defendants have acted in a knowing and willful manner and as such punitive damages should be awarded in favor of Plaintiff in the amount of three times the amount of compensatory damages awarded by the Court or more as deemed appropriate by the Court.
 - b. Alternatively, for judgment that Defendants were knowing and reckless and as such punitive damages should be awarded in favor of Plaintiff in the amount of three times the amount of compensatory damages awarded by the Court or more as deemed appropriate by the Court.
- 4. An order awarding Plaintiff her attorney's fees and costs as allowed by statute and law.
- 5. For such other and further relief as the Court deems just and proper in the circumstances.

DATED and signed this 13th day of September, 2022.

JEFFS & JEFFS, P.C.

/s/ Liisa Hancock
Attorney for Plaintiff